

[REDACTED]

Control No: 25-010

Contractor: GardaWorld Federal Services, LLC

Service: Haiti Security Support Services

Est Dollar Value: [REDACTED]

**JUSTIFICATION REVIEW DOCUMENT
FOR EXCEPTION TO FAIR OPPORTUNITY**

Service: Haiti Security Support Services

Authority: Federal Acquisition Regulation (FAR) 16.505(b)(2)(i)(G)

[REDACTED] [REDACTED] [REDACTED]
[REDACTED] [REDACTED]

Contracting Officer: MSG Anthony Michael Patera PH: (309) 716-8698
Contracting Officer
E-Mail: anthony.m.patera.mil@army.mil

Technical: [REDACTED] [REDACTED]
[REDACTED]
[REDACTED]

Requirements: [REDACTED] [REDACTED]
[REDACTED]
[REDACTED]

Reviews: I have reviewed this justification and find it adequate to support an exception to fair opportunity.

[REDACTED]

[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

[REDACTED]

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**Department of the Army
Justification for Exception to Fair Opportunity
Under Multiple Award Indefinite Delivery Contracts**

1. Contracting Activity: U.S. Army Contracting Command – Rock Island (ACC-RI), Rock Island Arsenal, Rock Island, IL 61299-8000.

2. Description of Action: U.S. Army South (ARSOUTH) requests a firm-fixed-price task order modification with GardaWorld Federal Services, LLC (GWFS) against contract W52P1J-19-D-0001 under the Security Support Services-Global (SSS-G) multiple award indefinite delivery, indefinite quantity (IDIQ) contract. ACC-RI intends to formally incorporate this requirement by modifying the current task order W519TC-24-F-0176 to extend the Period of Performance (PoP). ACC-RI projects award for March 2025 and will obligate fiscal year (FY) 2025, Operations and Maintenance, Army funds.

The Senior Contracting Official (formally known as the Principal Assistant Responsible for Contracting) approved the SSS-G acquisition plan in accordance with (IAW) Defense Federal Acquisition Regulation Supplement 207.103(d)(i)(B) on 12 July 2017. The SSS-G acquisition plan stated that as new requirements arise those requirements would be competed IAW FAR 16.505(b), unless an exception at FAR 16.505(b)(2) applies to where a Justification for Exception to Fair Opportunity (JEFO) approval is obtained.

Task order W519TC-24-F-0176 was awarded to GWFS in April 2024. That award was supported by JEFO 24-033 IAW FAR 16.505(b)(2)(i)(A) for Urgency. The task order's PoP began on 14 April 2024 and originally went through 13 April 2025 but was curtailed to 30 March 2025 based on mission requirements and to align with the Logistics Civil Augmentation Program (LOGCAP) Multinational Security Support (MSS) Haiti mission, W519TC-24-F-0212 (refer to JEFO 24-036).

Performance will need to continue beyond 30 March 2025 and therefore a JEFO to extend the PoP is required. The estimated dollar value based on the [REDACTED]

[REDACTED] The proposed JEFO will increase the total task order value from \$30,534,074.00 to [REDACTED]

3. Description of Supplies/Services: The U.S. Army Sustainment Command is supporting ARSOUTH by providing contracted logistics support services under LOGCAP. LOGCAP provides contracted capabilities to plan for and, when directed, rapidly provide the sustainment capabilities necessary to set theaters and enable Army, joint, interagency, intergovernmental, and multinational operations. Haiti has been determined to be a threat level II environment. Per Joint Publication 3-10, Joint Security Operations in Theatre, a threat level II environment includes small-scale forces that can pose serious threats to military forces and civilians. Attacks by level II threats can cause significant disruptions to military operations and the orderly conduct of local government and services. A threat level II environment consists of "Small tactical units; irregular

forces may include significant stand-off weapons threats.” IAW Army Regulation 700-137 LOGCAP (Chapter 6-3) LOGCAP can be utilized in threat level II conditions if LOGCAP contractor personnel (including subcontractor personnel) are provided sufficient force protection. The scope of services being performed in Haiti under the proposed extension with GWFS include providing [REDACTED]

[REDACTED] protect personnel, equipment, weapons and [REDACTED], lodging, entry control points, and perimeter security within the confines of the Toussaint Louverture International Airport for LOGCAP in support of the United Nations (UN) MSS mission.

The extension of this task order PoP includes one, six-month and two, three month evaluated option periods (OP). [REDACTED]

[REDACTED], including options, based on historical Haiti security support services pricing and the IGE. The following table provides the price breakdown of the option periods.

Description	6 Month OP	3 Month OP	3 Month OP
Security Support Services	[REDACTED]	[REDACTED]	[REDACTED]
	Total	[REDACTED]	

4. Authority Cited: FAR 16.505(b)(2)(i)(G). For DoD, NASA, and the Coast Guard, the order satisfies one of the exceptions permitting the use of other than full and open competition listed in 6.302. IAW FAR 6.302-1(a)(2)(iii)(B), for DoD, NASA, and the Coast Guard, services may be deemed to be available only from the original source in the case of follow-on contracts for the continued provision of highly specialized services when it is likely that award to any other source would result in unacceptable delays in fulfilling the agency’s requirements.

5. Reason for Authority Cited: Currently, Haiti is on the brink of being a complete failed state. Original conditional approval for security support services in Haiti was approved on 14 April 2024 by ARSOUTH who provided \$6,000,000.00 in funding for GWFS to undertake administrative tasks essential for contract execution, and on 02 May 2024 MG William Thigpen, Commanding General U.S. Army South authorized GWFS’s onward movement into Haiti. As such, JEFO 24-033 was approved on 10 May 2024 for 12-months of service. Since then, the Secretary of Defense extended the 10 U.S.C. 331 Friendly Foreign Countries: Authority to Provide Support for Conduct of Operations, to include the MSS Haiti mission, through FY 2026 as the Under Secretary of Defense for Policy expects to receive continued requests and requirements from combatant commands. Additionally, specific guidance has been issued to extend logistics support. Notably, Joint Staff Executive Order Revision 1 Modification 002 (JS EXORD REV 1 MOD 002) – Defense Support to the MSS Haiti, dated 3 January 2025, directs the

extension of LOGCAP support until 30 September 2025 from the revised date of 1 June 2025. Finally, U.S. Southern Command Fragmentary Order 09 (USSOUTHCOM FRAG 09) to Execute LOGCAP LSA contract, dated 6 January 2025, provides further direction to extend LOGCAP support from 1 June 2025 to 30 September 2025 for ARSOUTH and units in support of the MSS Haiti mission.

As the current contractor providing security support services for LOGCAP's MSS Haiti mission, GWFS is the only SSS-G IDIQ contractor that can provide the required support without an unacceptable delay. GWFS holds the requisite host nation business licenses and private security licenses, has current operational understanding of the situation, and has the necessary business relationships to continue performance until the MSS Haiti mission is complete.

While all four SSS-G IDIQ contractors can provide the required services, due to the current task order with GWFS expiring 30 March 2025, there is no time to conduct a task order competition against the SSS-G IDIQ contract using fair opportunity procedures. Based on historical procurement acquisition lead times, it would take at least six-months to solicit, evaluate, and award a competitive task order. Additionally, it would take at least an additional three months after award for any SSS-G IDIQ contractor other than GWFS to onboard adequate resources, provide training, obtain visas, and obtain host nation business and private security licenses. This timeline far exceeds the expiration of the current task order and would result in a lapse of these critical services.

These security support services are imperative to the MSS mission. If this JEFO is not approved, it would cause a ripple effect as LOGCAP support cannot be provided in a threat level II area without sufficient force protection as noted above. This would result in a failure to support our allies in the UN and could potentially result in further unnecessary loss of life due to the instability in Haiti.

6. Market Research: Market research was conducted by issuing a Request for Information (RFI) to the current SSS-G IDIQ contractors on 09 September 2024. The RFI requested information on each contractor's current posture and capability within Haiti. Four responses were received (Triple Canopy; SOC; Acuity-Janus Global, LLC; and GWFS). The results of the market research revealed that GWFS was the only contractor with a current presence and requisite business and security licenses in Haiti. Although the other SSS-G contractors have the ability to perform these services and obtain the required business and security licenses, due to the reasons stated in paragraph 5, GWFS is the only contractor capable of performing these critical services without an unacceptable delay.

7. Actions to Increase Competition: At this time, it is unknown if there will be an enduring requirement for security support services in Haiti. However, the Government will continue to conduct market research to determine if there are changes in the market conditions that would enable future competitive action.

8. Other Facts:

[REDACTED]

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Est Dollar Value: [REDACTED]

Procurement History

Contract Number: W52P1J-19-D-0001, Task Order: W519TC-24-F-0175
Contractor: GWFS
Award Date: 14 April 2024
Competitive Status: Sole Source
Authority: FAR 16.505(b)(2)(i)(A), JEFO 24-033

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Est Dollar Value: [REDACTED]

[REDACTED]

[REDACTED]

11. Fair and Reasonable Cost Determination: I hereby determine that the anticipated cost or price to the Government for this contract action will be fair and reasonable based on the comparison of historical prices paid and the IGE IAW FAR 15.404-1(b)(2)(ii) and FAR 15.404(b)(2)(v). This commercial acquisition is exempt from obtaining certified cost or pricing data IAW FAR 15.403-1(b)(3).

Date: 02/24/2025

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MSG Anthony Michael Patera
Procuring Contracting Officer

12. Contracting Officer Certification: I certify that this justification is accurate and complete to the best of my knowledge and belief.

Date: 02/24/2025

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MSG Anthony Michael Patera
Procuring Contracting Officer



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Est Dollar Value: 

Approval

Based on the foregoing justification, I hereby approve the procurement of Haiti Security Support Services using an exception to fair opportunity pursuant to the authority of FAR 16.505(b)(2)(i)(G), subject to availability of funds, and provided that the services or supplies herein described have otherwise been authorized for acquisition.

Date: 2/27/25

Signature: ARMER.LYNDA.R
ENEE.1150486285

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Date: 2025.02.27 17:33:53 -08'00'

LYNDA R. ARMER
Senior Executive Service
Senior Contracting Official